

**FIRST ENDORSEMENT**

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Department Advocate's Office February 23, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-27772 against Sergeant Alexander Rapp, Tax Registry No. 943719. This case was conferenced on February 22, 2024, before Assistant Deputy Commissioner of Trials, Jeffrey Adler who approved the negotiated penalty of a Command Discipline Schedule B and the forfeiture of five (5) vacation days. Charges and Specifications will be dismissed for plea purposes.

*Andre D. Applewhite*

Andre Applewhite  
Chief Prosecutor APU  
New York City Civilian Complaint Review Board



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

|                                |
|--------------------------------|
| CASE NO.<br>2023-27772         |
| BOOK & PAGE NO.<br>Page 1 of 2 |
| PERSONNEL ORDER NO.            |

|                          |                            |                      |                              |                                 |
|--------------------------|----------------------------|----------------------|------------------------------|---------------------------------|
| RANK/TITLE<br>SDS        | SURNAME,<br>RAPP           | FIRST<br>ALEXANDER   | M.I.<br>L                    | COMMAND<br>GUN VIOL SUPP DIV Z2 |
| SHIELD NO.<br>2234       | TAX REGISTRY NO.<br>943719 | SOCIAL SECURITY NO.  | DATE APPOINTED<br>01/10/2007 |                                 |
| RANK/NAME OF COMPLAINANT |                            |                      |                              | COMMAND                         |
| DATE OF CHARGES          |                            | DATE TRIAL COMMENCED |                              | DATE TRIAL CONCLUDED            |
| TRIAL COMMISSIONER       |                            |                      |                              |                                 |

| SPECIFICATION                                                                                                                                                                                                                                                                                                                                                                                  | DISPOSITION | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [X]                                                                                                                                                                                                                                                                                                                                                   |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. Sergeant Alexander RAPP, on or about August 25, 2021, at approximately 0730, while assigned to GVSD GUN REC and on duty, in the vicinity of § 87(2)(b), Bronx County, abused their authority as a member of the New York City Police Department, in that they damaged § 87(2)(b) property, to wit, they damaged § 87(2)(b) front door of her apartment, without sufficient legal authority. | DISMISSED   | B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. |
| 2. Sergeant Alexander RAPP, on or about August 25, 2021, at approximately 0730, while assigned to GVSD GUN REC and on duty, in the vicinity of § 87(2)(b), Bronx County, abused their authority as a member of the New York City Police Department, in that, they forcibly entered § 87(2)(b) in The Bronx, § 87(2)(b), without sufficient legal authority.                                    | DISMISSED   |                                                                                                                                                                                                                                                                                                                                                                                             |
| 3. Sergeant Alexander Rapp, on or about August 25, 2021, at approximately 0730, while assigned to GVSD GUN REC and on duty, in the vicinity of § 87(2)(b), Bronx County, abused their authority as a member of the New                                                                                                                                                                         | DISMISSED   |                                                                                                                                                                                                                                                                                                                                                                                             |

*IX Brindley* 5/3/24  
FIRST DEPUTY COMMISSIONER DATE

**POLICE COMMISSIONER'S APPROVAL**

- ☒ Approved  
☐ Disapproved  
☐ Other Action (Describe)

*Edward A. Caber* 6/28/24  
POLICE COMMISSIONER DATE



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

|                                |
|--------------------------------|
| CASE NO.<br>2023-27772         |
| BOOK & PAGE NO.<br>Page 2 of 2 |
| PERSONNEL ORDER NO.            |

|                                                                                                                |                            |                      |           |                                               |
|----------------------------------------------------------------------------------------------------------------|----------------------------|----------------------|-----------|-----------------------------------------------|
| RANK/TITLE<br>SDS                                                                                              | SURNAME,<br>RAPP           | FIRST<br>ALEXANDER   | M.I.<br>L | COMMAND<br>GUN VIOL SUPP DIV Z2               |
| SHIELD NO.<br>2234                                                                                             | TAX REGISTRY NO.<br>943719 | SOCIAL SECURITY NO.  |           | DATE APPOINTED<br>01/10/2007                  |
| RANK/NAME OF COMPLAINANT                                                                                       |                            |                      |           | COMMAND                                       |
| DATE OF CHARGES                                                                                                |                            | DATE TRIAL COMMENCED |           | DATE TRIAL CONCLUDED                          |
| TRIAL COMMISSIONER                                                                                             |                            |                      |           |                                               |
| SPECIFICATION                                                                                                  |                            | DISPOSITION          |           | RECOMMENDED PENALTY<br>PLEA [ X ] TRIAL [ X ] |
| York City Police Department, in that they searched § 87(2)(b) in The Bronx without sufficient legal authority. |                            |                      |           |                                               |

*DC Barbis*      5/3/24  
FIRST DEPUTY COMMISSIONER      DATE

**POLICE COMMISSIONER'S APPROVAL**

- ☒ Approved  
☐ Disapproved  
☐ Other Action (Describe)

*Edward A. Cab*      6/28/24  
POLICE COMMISSIONER      DATE

**THIRD ENDORSEMENT**

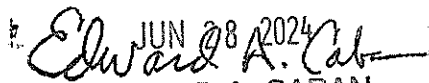
First Deputy Commissioner to Police Commissioner May 1, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-27772 against Sergeant Alexander Rapp, Tax No. 943719, with the recommendation that Sergeant Rapp receive a Schedule "B" Command Discipline, with the forfeiture of five (5) vacation days. Assistant Deputy Commissioner, Trials Jeff Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **FOR YOUR APPROVAL.**

TIK/jpc



Tania I. Kinsella  
**FIRST DEPUTY COMMISSIONER**

**APPROVED**

  
JUN 28 2024  
EDWARD A. CABAN  
POLICE COMMISSIONER